

Court No. - 40

Case :- WRIT - C No. - 29079 of 2022

Petitioner :- Smt. Savitri Devi

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Kedar Nath Mishra, Jai Prakash Singh

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

List this case on 07.12.2022 as fresh case amongst top ten cases.

Order Date :- 2.12.2022

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Court No. - 3

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Counsel for Petitioner :- Kedar Nath Mishra, Jai Prakash Singh

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Heard Sri Jai Prakash Singh, learned counsel for the petitioner, learned Standing Counsel for the State respondent and Sri Alok Mishra, learned counsel for respondent no.2.

The only relief pressed in the present writ petition is for a direction to the respondent no.2 to correct the electricity bills of the petitioner and receive the payments in easy installments.

For both the aforesaid reliefs the petitioner has a remedy under Paragraph 6.5 and 6.14 of the Uttar Pradesh Electricity Supply Code, 2005.

Therefore, without expressing any opinion on merits of the case of the petitioner, the writ petition is **disposed of** giving liberty to the petitioner to avail the remedy as provided under Paragraph 6.5 and 6.14 of the U.P. Electricity Supply Code, 2005. In the event any such application is moved under the aforesaid provisions, the respondent no. 2 shall take appropriate decision in accordance with law, preferably within four weeks from the date of submission of application along a the certified copy of this order, after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 8.2.2023

Kirti